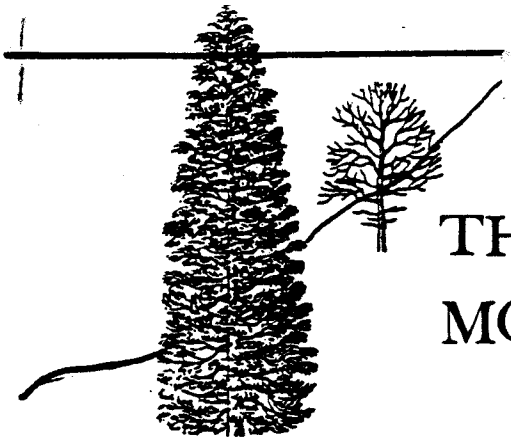


I sing the first green leaf upon the bough
The tiny kindling flame of emerald fire
The stir among the roots of reeds, and how
The sap will flush the briar.

Clinton Scollard, "Song in March"

THE MOUNTAINSIDE NEWS

Volume 4, Number 2 March/April 1989

BUSINESS REGULATIONS PASS/1ST ANNUAL NEW YEAR'S FESTIVITIES

The proposed Business Regulations (as amended) were passed at the New Year's weekend meeting by a nearly unanimous vote. Events for the weekend began with a group round-robin tour of six homes -- with the owner of each successive home sneaking out a little early to "welcome" the group. (This year's scheduling, 4:00 to 6:00, proved hectic -- next year we'll begin around 1:00.) The business meeting was called to order around 7:00 and lasted a little over an hour. Later, about 42 members and guests celebrated New Year's Eve at Tree Top House with a roaring fireplace, cash bar and hot hors d'oeuvre. During the quiet interim between 10:00 and 12:00, things were livened up by a men-vs-women variation of Trivial Pursuit, ably moderated by Don Fox's young daughter Julie and friend. About 30 or so were still around to usher in the new year at midnight. The next morning a good-sized group enjoyed the discout-priced New Year's brunch at Treetop House.

Definitely planning to do this again next year!

RECENT LOT AND HOME SALES/NEW HOMES

Welcome to: New homeowner Constance Dupre of Washington D.C. who bought C-4 from Hans Binnendijk; new lot owners Robert and Colleen Corbey of Potomac MD who bought lot A-6 from Donna Wilcox; and new lot owners John and Anne-Marie Doppman, also of Potomac who bought lots E-5 and 6 from Don Burnes and Alice Baum.

The homes of both Dowlings (Bob and Sally, K-16 and John and Maggie, P-7, are under roof. The Mannekins, D-7, is completed.

WVA SUPREME COURT RULES ON DISSIDENT SUIT: A Report from CMA Pres. Don Fox

On March 13, 1989, the Supreme Court of West Virginia unanimously affirmed the lower court's refusal to allow a small group of CMA members to reopen the dismissal of the litigation that had been settled by CMA and CDC. As the Supreme Court noted, the settlement had been approved in 1986 by over two-thirds of the membership. (The settlement was reaffirmed by an even larger margin at the CMA Annual Meeting in 1988.)

(cont., p. 2)

Published by the COOLFONT MOUNTAINSIDE ASSOCIATION, Rt. 1 Coolfont Rd. Box 21, Berkeley Springs, WV 25411.
Editor: Carol M. Green, 3703 Curtis Ct., Chevy Chase MD 20815. 301/654-7737.

SUPREME COURT RULING (cont.)

The Supreme Court held that the dissident group had "failed to articulate any facts to support their motion to reopen the case." Significantly, the Court also went on to indicate that it had reviewed the entire record and had found no basis for vacating the settlement agreement between CMA and CDC. Thus, even if the case were reopened, the Supreme Court found the group had no basis on which to attack the settlement between CMA and CDC.

This ruling should ring down the curtain on litigation that had been going on since 1983. /Ed. Note: Let us try from now on to avoid the criticism of St. Paul in 1 Corinthians 6:7, "It is altogether a defect in you that you have lawsuits one with another."/

DID YOU NOTICE...

--That Drug Czar William Bennett chose Coolfont's six-day quit smoking program as a beginning to fulfilling his pledge to "kick the habit" before his confirmation.

--The highly complimentary article about Lon Dring (O-1) in the January 26 '89 Washington Post. Lon, the Director of Community Ministry of Montgomery County, was honored with the County's Martin Luther King Jr. Humanitarian Award for his 16 years of work on behalf of people in need. Described by many in Maryland as the "conscience of the county", Lon is known to us for, among other things, his efforts to resolve the differing views among the membership regarding relations with the developer as Chairman of the so-called Phase II Committee in 1986.

ON THE SUBJECT OF CONTRIBUTIONS TO CMA

We think it not amiss to report that at the Board's December meeting, (cont.)

CONTRIBUTIONS (cont.)

incumbent "watchdog", Herb Jasper, commented that, if and when the Business Regulations were passed, he would be "retiring" from such active participation in CMA affairs (there are some who will have to see it to believe it!). The Board moved that the minutes record its appreciation of Herb's tireless efforts over the past several years and very real contributions to the well-being of the Association.

COOLFONT FOUNDATION

--Saturday, April 8: Pianist DR. RALPH HILL, featuring the music of Scott Joplin, 8:30 PM, the Manor House.

--Saturday, May 27: Pianist PETER BASQUIN, 8:30 PM, the Manor House.

ABOUT MEMBERS PAST

We are sorry to report that Dotty Leech died a few weeks ago in Berkeley Springs where she had moved after selling her Coolfont home. Dotty and late husband Art were among the first "settlers" at Coolfont, and, if memory serves, Art was CMA's first Treasurer. Our sympathy to Dotty's family and friends.

Coming Board Meetings

The next Board meeting will be held on Saturday, April 8, 9:15 AM at the Bethesda Library, 7400 Arlington Rd., Small Mtg. Rm. The Board plans to hold the following meeting, May 13, at Coolfont to coincide with CMA's THIRD ANNUAL PLANT-IN (Note to newcomers: a day when members pitch in to enhance landscaping around the pool area and attend to the trails). You'll be receiving particulars soon.

* * * * *

Also looking ahead...We're planning to repeat last year's successful JULY 4TH CELEBRATION ON THE MOUNTAINSIDE. Keep a look-out for further information.

EXCHANGE OF INFORMATION ON RELIABLE LOCAL SERVICE PEOPLE

We received the following responses to our questionnaire about local service people and sources.

From Bob Umbel, H-10:

"I found a chimney sweep who did an excellent job cleaning the Round House chimney for a very reasonable $40. He lives outside Martinsburg... and wondered if several people could use his service on a particular day, especially weekends -- but he would certainly not turn down individual work, he said." SOUTH BERKELEY CHIMNEY SWEEP, Rt. 4, Box 461B, Martinsburg WV 25401. (304) 263-5784. JOE BURRIS, owner.

Barbara and Don Fairfield, M-2, the Log House, recommend MARTY'S UPHOLSTERY, Berkeley Springs. "He does an excellent job (had 2 couches reupholstered) -- will pick up and deliver." (You'll have to get tel. no. from operator).

Jim Lancaster, K-15, writes:

"I'd like to recommend Richard A. Wilson who has performed outstanding homeowner services for me for the past four years. Richard has done excellent work in the following areas:

- -general maintenance (no electrical)
- -painting (both exterior and interior)
- -strip, sand, buff, finish hardwood floors
- -carpet cleaning
- -landscaping/lawn care/grounds maint.
- -windows
- -general housecleaning

Richard has recently moved to the Hedgesville/Berkeley Springs area and is looking for new clients. I am (cont.)

Jim Lancaster (cont.)

certain you will be completely satisfied with his work. He can be reached at (304) 754-8281, or c/o G. Harrison, P.O. Box 719, Hedgesville, WV. Please feel free to contact me at (202) 663-2509 if you have any questions."

Bill Garrett, I-2 and 3: "had a great experience with DAWSON'S HARDWARE, Berkeley Springs (quick service, low cost, good work) for plumbing, appliance repair and rotary TV antenna repair." Ed. Note: They can provide electrician, plumber, also tile/carpet installation. DAWSON'S number is (304) 258-2111.

Then there are. of course, as Bill writes, RAYMOND AND CAROL PITTMAN. The Pittmans regularly monitor the homes of many CMA members and can handle just about any routine maintenance and repair work (tree work too). If a specialist is needed, Carol will make the arrangements. While they are very busy, Carol says they'll be glad to "put you on the list." Telephone, in Berkeley Springs, (304) 258-2706.